

23NWCV03125 23NWCV03125

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-18

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Case Number: 23NWCV03125 Hearing Date: August 18, 2026 Dept: C

K.L.G. v.

COUNTY OF LOS ANGELES, ET AL.

CASE NO.

23NWCV03125

TENTATIVE

RULINGS AS OF AUGUST 18, 2026 AT 9:00 A.M.

I.

Defendants' Motions in Limine

Defendants'

MIL #1

Defendants seek

to preclude Plaintiff from introducing evidence contained within Defendant Christina Hernandez and Kevin Estrada Guevara's Peace Officer Personnel Records, including but not limited to the Sheriff Departments' Internal Affairs Investigation regarding this incident, statements, administrative settlement/disciplinary resolution as part of the investigation, disciplinary history, disposition of the internal affairs investigation, and any communications or materials contained therein.

The motion is

GRANTED in part and DENIED in part. Plaintiff

may introduce evidence of statements made by Hernandez and Gevara relating to

the incident as admissions by a party opponent and for impeachment. Plaintiff may introduce evidence of the Prison

Rape Elimination Act (PREA), to the extent adopted by the County, as evidence of the standard of care, and evidence that Hernandez and Guevara violated the PREA and other safety policies adopted by the County as evidence of breach of the standard of care. Plaintiff may NOT introduce evidence of post-incident administrative processes and negotiated disciplinary resolutions. Under EC § 352, the probative value of such evidence is substantially outweighed by the probability their admissions will necessitate undue consumption of time, create substantial danger of undue prejudice, confuse the issues, and mislead the jury. Defendants' motion to file documents under seal in support of Defendants' Motion in Limine #1 is GRANTED.

Defendants'
MIL #2

Defendants seek to preclude Plaintiff from introducing evidence of other instances of sexual misconduct and sexual harassment by the County of Angeles and its personnel or evidence suggesting an alleged "longstanding history" of sexual assault, including but not limited to prior lawsuits, settlements, claims, unsupported similar allegations and/or incidents, and PREA findings, audits, and standards involving the County of Los Angeles and Pico Rivera Station. Plaintiff argues that such evidence is admissible under EC § 1101(b) to show Defendants' knowledge, notice, foreseeability, and absence of mistake.

The motion is GRANTED in part. Under EC § 352, the probative value of such evidence is substantially outweighed by the probability their admissions will necessitate undue consumption of time, create substantial danger of undue prejudice, confuse the issues, and mislead the jury. Plaintiff MAY introduce expert testimony which summarizes the purpose of the PREA, and the County's adoption of PREA, as evidence tending to show Defendant's knowledge, notice, and foreseeability.

Defendants'
Motion in Limine #3

Defendants seek to preclude Plaintiff from introducing evidence concerning internal LASD policies, PREA materials, juvenile supervision or housing rules, Brady-related

materials, and other collateral standards to the extent such matters are offered as the governing standard of care, as substantive proof of liability, or as a basis to inflame or mislead the jury, and improper expert opinion.

The motion is

GRANTED in part and DENIED in part.

Plaintiff MAY introduce evidence of the PREA, as discussed above, LASD custody policies governing inmate-worker assignments and supervision, Medina's youth, and POST training materials.

Under EC § 352, Plaintiff may NOT introduce evidence of LASD's Brady policy. Plaintiff seeks to introduce

such evidence in attempt to rebut any argument by Defendants that Plaintiff's account of the sexual assault is not credible.

However, any argument by Defendants that Plaintiff was not a victim of sexual assault may open the door to other evidence excluded by the Court, including the results of LASD's internal investigation of Hernandez and Guevara. The probative value of LASD's Brady policy is substantially outweighed by its prejudicial effect. The Court will hear from the parties regarding the admissibility of testimony by Dr. Bennett Williamson regarding interview protocols of sex abuse victims.

Defendants'

Motion in Limine #4

Defendants seek

to exclude the testimony of Plaintiffs designated police-practices expert, Roger Clark, in its entirety. At minimum, the Court should bar him from offering opinions on legal standards, Brady, juvenile matters, employment or workers' compensation concepts, unsupported PREA testimony, and any hindsight-driven or speculative opinion.

The motion is

GRANTED in part and DENIED in part. Clark

qualifies as a Police Procedures Consultant and he MAY testify regarding the proper protocol deputy officers should follow when supervising trustees/inmate workers in a jail setting; the standards, policies, and procedures mandated by the Prison Rape Elimination Act; and proper protocols for selecting candidates for the inmate worker/trustee program. Plaintiff

agrees that Clark will NOT testify regarding LASD's Brady policy, workers compensation issues, and juvenile detention rules.

II.

Plaintiff's Motions in Limine

Plaintiff's

Motion in Limine #1

Plaintiff seeks

to exclude: (1) Defendant Medina himself appearing as a witness, or being called as a witness by any party, to offer testimony that contradicts the material allegations of the Complaint or that would relitigate liability he has already confessed by default and by his criminal conviction; (2) Introduction of any document, video, interview, statement, declaration, or recorded statement attributable to Defendant Medina that is offered to dispute the material allegations of the Complaint or his defaulted liability; (3) Argument by any party—including the Defendants County/LASD—that purports to advance Defendant Medina's factual position, defenses, or version of events as a means of contesting his liability; and (4) Any reference, suggestion, or inference inviting the jury to credit a defense theory that Defendant Medina has, by his default, been precluded from asserting himself.

Plaintiff does not ask the Court to limit Defendants' ability to put on their own defense, to call their own witnesses, or to offer their own evidence regarding their own conduct. Subject to

this limitation, the motion is GRANTED. Defendants

point out that they are entitled to offer evidence of what actually happened, whether the sexual assault was foreseeable, and the proper allocation of fault between Medina and the remaining defendants.

Here, both sides agree that evidence offered for the purpose of contesting Medina's liability is inadmissible; testimony from Medina is not inadmissible if offered in support of Defendants' own defense.

Amended Plaintiff's

Motion in Limine #2

Plaintiff seeks

to preclude Defendants from introducing any evidence, testimony, or argument that contradicts or is inconsistent with Defendant Juan Carlos Sanchez Medina's criminal conviction in the underlying criminal case, People v. Juan Carlos Sanchez Medina, Case No. VA161374. As of

August 17, 2026, the Court has not received Defendants' opposition. However, Plaintiff does not identify any specific

evidence Plaintiff seeks to exclude. Thus,
the motion is DENIED.

Plaintiff's
Motion in Limine #3

Plaintiff seeks

to exclude evidence that (1) Plaintiff consented to or invited any sexual contact with Defendant Juan Carlos Sanchez Medina; and 2) Plaintiff was negligent or comparatively at fault for the sexual assault she suffered while in the custody of the Los Angeles County Sheriff's Department ("LASD"). Plaintiff further asks that Defendants be prevented from impeaching Plaintiff's credibility using opinion, reputation, or specific-instance evidence of her sexual conduct. The motion is DENIED. Because Defendants face only negligence claims, they may introduce evidence of comparative fault arising from the circumstances of the sexual assault against Plaintiff.

Plaintiff's
Motion in Limine #4

Plaintiff seeks

to exclude evidence of Plaintiff and David Burgos's February 14, 2023 arrest, including the circumstances of those arrests, the alleged underlying conduct, and any related statements, reports, photographs, or recordings. Plaintiff also seeks to exclude evidence of Plaintiff's 2013 arrest for shoplifting. The motion is GRANTED. The probative value of the 2013 and 2023 arrests is substantially outweighed by undue prejudice to Plaintiff. Defendants may introduce evidence that Plaintiff was arrested and booked, but not the circumstances of the arrest. However, evidence of Plaintiff's 2013 arrest may be admissible for impeachment if Plaintiff testifies at trial that she had not been arrested before 2023.

Plaintiff's
Motion in Limine #5

Plaintiff seeks

to exclude evidence of Plaintiff's sexual history, including evidence of Plaintiff's prior marriages, pregnancies and/or miscarriages, sexual partners, and past romantic relationships. Defendants represent that they will comply EC § 1106 (opinion evidence, reputation

evidence, and evidence of specific instances of plaintiff's sexual conduct is not admissible in order to prove consent or absence of injury). Subject to the use of such evidence for impeachment, the motion is GRANTED. If Defendants seek to introduce evidence for another purpose, the Court will hear an offer of proof at the hearing.

Plaintiff's

Motion in Limine #6

Plaintiff seeks

to exclude evidence of Plaintiff's receipt of Medi-Cal, CalFresh (food stamps), General Relief, cash aid, unemployment, and any other government or need-based public benefits. The motion is GRANTED. The Court accepts Plaintiff's representation that no claim is being made for past or future wage loss.

Plaintiff's

Motion in Limine #7

Plaintiff seeks

to preclude Defendants and their retained expert Heleya Rad, Ph.D., from offering any opinion or testimony regarding Plaintiff's diagnosis, prognosis, mental status, emotional distress, psychological injuries, causation, treatment needs, residual limitations, or psychological condition of any kind. Plaintiff argues that testimony by Dr. Rad should be excluded because Dr. Rad never examined, interviewed, or tested Plaintiff, Dr. Rad did not prepare a report, and Dr. Rad will offer no diagnosis. Defendants argue that Dr. Rad was retained to review the records, methodology, and conclusions of Plaintiff's expert, Dr. Bennett Williamson, and to identify deficiencies in his opinion. The motion is DENIED. Plaintiff's objections go to the weight of Dr. Rad's testimony, not to its admissibility.

Plaintiff's

Motion in Limine #8

Plaintiff seeks

to exclude the demonstrative still-image slides prepared by defense visualization expert Ethan Helms. The Court requires additional time to review this motion and the opposition. No tentative ruling is issued at this time.

Plaintiff's

Motion in Limine #9

Plaintiff seeks

to preclude Defendants from referring to any past or present use of alcohol, marijuana, or any other drug or controlled substance by Plaintiff. The Court has not received an opposition to this motion. No tentative ruling is issued at this time.

Plaintiff's

Motion in Limine #10

The Court has

not received Plaintiff's Amended Motion in Limine #10 or any opposition to it. No tentative ruling is issued at this time.